

It has long been a settled principle that federal courts may enjoin unconstitutional action by state officials. See *Ex parte Young*, 209 U. S. 123, 155–156 (1908). It would be superfluous to restate all the occasions on which this Court has imposed upon state officials a duty to obey the requirements of the Constitution, or compelled the performance of such duties; it may suffice to refer to *Brown v. Board of Education*, 349 U. S. 294 (1955), and *Cooper v. Aaron*, 358 U. S. 1 (1958). The fundamental premise of the holding in *Dennison*—“that the States and the Federal Government in all circumstances must be viewed as coequal sovereigns—is not representative of the law today.” *FERC v. Mississippi*, 456 U. S. 742, 761 (1982).

Yet, with respect to extradition, the law has remained as it was more than a century ago. Considered *de novo*, there is no justification for distinguishing the duty to deliver fugitives from the many other species of constitutional duty enforceable in the federal courts. Indeed the nature of the obligation here is such as to avoid many of the problems with which federal courts must cope in other circumstances. That this is a ministerial duty precludes conflict with essentially discretionary elements of state governance, and eliminates the need for continuing federal supervision of state functions. The explicit and long-settled nature of the command, contained in a constitutional provision and a statute substantially unchanged for 200 years, eliminates the possibility that state officers will be subjected to inconsistent direction. Because the duty is directly imposed upon the States by the Constitution itself, there can be no need to weigh the performance of the federal obligation against the powers reserved to the States under the Tenth Amendment.

Respondents contend, however, that an “executive common law” of extradition has developed through the efforts of Governors to employ the discretion accorded them under *Dennison*, and that this “common law” provides a superior alternative to the “ministerial duty” to extradite provided for by the Constitution. Tr. of Oral Arg. 21. Even assum-